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Supreme Court of the United States
October Term, 1995

Pete Wilson, Governor of the State of California;
Bill Jones, Secretary of State, California; Frank Zolin,
Director of the California Department of Motor Vehicles;
Eloise Anderson, Director of the California Department
of Social Services; Brenda Premo, Director of the
California Department of Rehabilitation,

vs. *Petitioners,*

Voting Rights Coalition; Coalition for an African-American
Community Agenda; League of Women Voters of California;
California Common Cause; '94 Committee; Stella Dominquez;
Cynthia Moreno; and Veronica Moreno,

Respondents.

Pete Wilson, Governor of California; State of California,

vs. *Petitioners,*

Janet Reno, U.S. Attorney General; United States of America,

Respondents.

**On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Ninth Circuit**

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

This case arises from California's Tenth Amendment challenge to the National Voter Registration Act, 42 U.S.C. § 1973gg *et seq.*, popularly known as the "Motor Voter" Act, which was purportedly enacted pursuant to Congress's power under Article I, section 4 of the U.S. Constitution, which authorizes it to regulate the time, place and manner of federal elections. The Act requires state agencies and employees, whose responsibilities under state law were heretofore unrelated to the administration of elections, to administer a federal voter registration program. This petition presents this Court with an unusual opportunity to address several important, unsettled issues of federalism, including – for the first time – the extent of the Tenth Amendment's restraint on Congress's Article I powers other than the Commerce Clause; the reach of this Court's decision in *New York v. United States*, 505 U.S. 144 (1992); and the extent to which Congress may exercise its Article I power to conscript state agencies and employees whose responsibilities were heretofore unrelated to the federal statutory program that they are now being required to administer. Specifically, this petition presents the following questions:

1. Whether the National Voter Registration Act, 42 U.S.C. § 1973gg *et seq.*, violates the Tenth Amendment of the U.S. Constitution by directing the States to designate state agencies "as voter registration agencies" and by commandeering state employees, whose responsibilities

QUESTIONS PRESENTED – Continued

were heretofore unrelated to voter registration, to administer a federal voter registration program.

2. Whether Article I, section 4 of the U.S. Constitution, which authorizes the Congress to “make or alter” regulations as to the time, place, and manner of holding elections for Senators and Representatives, should be construed, in deference to the concept of federalism embodied in the Tenth Amendment, so as not to empower Congress to commandeer state agencies and state employees, whose responsibilities are unrelated to the administration of state election laws, to administer the federal voter registration program required by the National Voter Registration Act, 42 U.S.C. § 1973gg *et seq.*

3. If Article I, section 4 does not empower Congress to enact the National Voter Registration Act, 42 U.S.C. § 1973gg *et seq.*, then whether the Fourteenth and Fifteenth Amendments to the U.S. Constitution grant Congress the power to commandeer state agencies and state employees, whose responsibilities are unrelated to the administration of state election laws, to administer the federal voter registration program required under the Act. This last issue was fully briefed, but not reached, in the court below.

LIST OF PARTIES TO THE PROCEEDINGS IN THE COURT BELOW

This proceeding consists of two consolidated actions.

In the first action (district court case no. C-94-20860 JW), the plaintiffs (respondents herein) are: the Voting Rights Coalition; Coalition for an African-American Community Agenda; League of Women Voters of California; California Common Cause; '94 Committee; Stella Domínguez; Cynthia Moreno; and Veronica Moreno. The defendants (petitioners herein) are: California Governor Pete Wilson; Bill Jones, Secretary of State of California; Frank Zolin, Director of the California Department of Motor Vehicles; Eloise Anderson, Director of the California Department of Social Services; and Brenda Premo, Director of the California Department of Rehabilitation.

The second action (district court case no. 95-20042-JW) was brought by California Governor Pete Wilson and the State of California (petitioners herein) against Janet Reno, U.S. Attorney General; the United States of America; Trevor Potter, Chairman, Federal Elections Commission; and the Federal Elections Commission. Trevor Potter and the Federal Elections Commission were dismissed by the district court and were not before the Court of Appeals; thus, they are not parties herein, and they have no interest in this petition.

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Pete Wilson, Governor of the State of California; Bill Jones, the California Secretary of State; Frank Zolin, Director of the California Department of Motor Vehicles; Eloise Anderson, Director of the California Department of Social Services; Brenda Premo, Director of the California Department of Rehabilitation; and the State of California respectfully petition for a writ of certiorari to review the judgment of the United States Court of Appeals for the Ninth Circuit in this case.

OPINIONS BELOW

The opinion of the Ninth Circuit Court of Appeals is reported at 60 F.3d 1411. The opinion of the district court is reported at 878 F. Supp. 1324.

STATEMENT OF JURISDICTION

The judgment of the Ninth Circuit from which review is sought was entered on July 24, 1995.

The jurisdiction of this Court is invoked under 28 U.S.C. § 1254(1).

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

This matter involves the following constitutional and statutory provisions:

Article I, section 4 of the U.S. Constitution provides:

"The times, places and manner of holding elections for Senators and Representatives, shall be prescribed in each state by the legislature thereof; but the Congress may at any time by law make or alter such regulations, except as to the places of chusing Senators."

The Tenth Amendment of the U.S. Constitution provides:

"The powers not delegated to the United States by the Constitution, nor prohibited by it to the states, are reserved to the states respectively, or to the people."¹

The National Voter Registration Act, 42 U.S.C. § 1973gg *et seq.*, is the statute whose constitutionality is challenged in this proceeding. One relevant section requires state motor vehicle agencies to serve as voter registration agencies and requires driver's license applications and renewals to be modified to serve as voter registration applications. 42 U.S.C. § 1973gg-3. Another relevant section provides:

"(1) Each State shall designate agencies for the registration of voters in elections for Federal office.

(2) Each State shall designate as voter registration agencies –

(A) all offices in the State that provide public assistance; and

(B) all offices in the State that provide State-funded programs primarily engaged in providing services to persons with disabilities.

* * *

(4)(A) At each voter registration agency, the following services shall be made available:

(i) Distribution of mail voter registration application forms in accordance with paragraph (6).

¹ The full text of the Fourteenth and Fifteenth Amendments, which will only be addressed if this Court decides the third question presented, are set forth in the Appendix.

- (ii) Assistance to applicants in completing voter registration application forms, unless the applicant refuses such assistance.
- (iii) Acceptance of completed voter registration application forms for transmittal to the appropriate State election official."

42 U.S.C. § 1973gg-5(a)(1), (2) and (4).

The full text of this Act is set forth in the Appendix.

STATEMENT OF THE CASE

This proceeding arises out of California Governor Pete Wilson's challenge to the National Voter Registration Act, popularly known as, and hereinafter referred to as, the "Motor Voter" Act, 42 U.S.C. § 1973gg *et seq.*, which requires that the States designate certain state agencies to assist with, and process applications for, voter registration for federal elections.

The Governor claims that the Act is an unconstitutional exercise of Congress's authority under Article I, section 4 of the U.S. Constitution and violates the Tenth Amendment because it commandeers state agencies and employees, which heretofore had nothing to do with the administration of election laws, to administer a federal voter registration program. Unlike this Court's other recent cases which address the Tenth Amendment's restraint on the Congress's Commerce Clause power, this challenge raises the issue of the Tenth Amendment's constraint on another Article I power (Article I, section 4). It also squarely addresses the scope of the federal government's right to conscript state employees to administer a

federal program when that program is totally outside the scope of their state-designated responsibilities.

A. The Provisions of The National Voter Registration Act

As stated by the Ninth Circuit in the opinion below, the National Voter Registration Act is "a complex statute of ten sections bearing the marks of legislative draftsmanship similar to those borne by the Internal Revenue Code." *Voting Rights Coalition v. Wilson*, 60 F.3d at 1413.

Under the Act, every state is required to designate certain state agencies, including its Department of Motor Vehicles and local welfare offices, as federal voter registration agencies. These agencies are required to prepare new voter registration forms for federal elections, assist in the registration of applicants for driver's licenses or social service benefits (to the point of home assistance for the disabled), and process the forms within ten (10) days or less.

1. The Department of Motor Vehicles' New Voter Registration Duties

Under Section 5 of the Act, each state shall "include a voter registration application form for elections for Federal office as part of an application for a State motor vehicles driver's license." 42 U.S.C. § 1973gg-3(c)(1). The voter registration application "may not require any information that duplicates information required in the driver's license portion," and "may require only the minimum amount of information necessary" to enable state officials to assess the eligibility of the applicant. 42 U.S.C. § 1973gg-3(c)(2). These provisions have been construed by respondents to prohibit even inquiry of the place of

birth or a verification of the applicant's citizenship beyond a simple attestation. *See, e.g.*, 59 Fed.Reg. 32311, 32316 (Jan. 23, 1994).

Any change of address submitted in connection with a driver's license must also serve as a change of address for voter registration purposes in federal elections unless the registrant states otherwise. 42 U.S.C. § 1973gg-3(d).

Finally, the Department of Motor Vehicles must process the completed voter registration portion of the application and transmit it to the appropriate state election officials not later than ten days after the date of acceptance, and in some circumstances within five days. 42 U.S.C. § 1973gg-3(e).

The Department of Motor Vehicles estimates that in order to provide the voter registration services required by the Act and maintain existing levels of service, fifty-eight additional full-time employees will be required statewide at a cost exceeding \$1.7 million. Prior to the imposition of these new voter registration duties, wait times at Department of Motor Vehicles offices in large urban centers already exceeded thirty minutes.

2. The Social Service Agencies' New Voter Registration Duties

Under Section 7 of the Act, 42 U.S.C. § 1973gg-5(a), "[e]ach State shall designate agencies for the registration of voters in elections for Federal office." These include "all offices in the State that provide public assistance," "all offices in the State that provide State-funded programs primarily engaged in providing services to persons with disabilities", and "other offices within the State," such as public libraries, public schools, unemployment compensation offices, and government revenue offices. It

may also designate "Federal and nongovernmental offices, with the agreement of such offices." 42 U.S.C. § 1973gg-5(a)(3)(B).²

These voter registration agencies must make the following services available: distribution of a new federal voter registration application with each application for the agency's services or with any change of address; transmittal of a form inquiring about the applicant's interest in registering and advising them of various rights; "[a]ssistance to applicants in completing voter registration application forms, *unless* the applicant refuses such assistance" [emphasis added]; and "[a]cceptance of completed voter registration application forms for transmittal to the appropriate State election official." 42 U.S.C. § 1973gg-5(a)(4) and (a)(6)(B).

Moreover, if the office provides services to a disabled person at that person's home, "the agency shall provide the [voter registration] services . . . at the person's home." 42 U.S.C. § 1973gg-5(a)(4)(B).

Each agency must process and transmit the completed registration applications not later than ten days after the date of acceptance, or in some circumstances, within five days. 42 U.S.C. § 1973gg-5(d).

3. The Designation of A Chief Election Official

Under Section 10 of the Act, 42 U.S.C. § 1973gg-8, each State "shall designate a State officer or employee as

² The state is also obligated to work with the Secretary of Defense to jointly develop and implement procedures so that persons may apply to register to vote at recruitment offices of the United States Armed Forces. 42 U.S.C. § 1973gg-5(c).

the chief State election official to be responsible for coordination of State responsibilities" under the Act.

4. Financial Effects of the Act in California

The State of California has estimated that the annual cost to the State of implementing this Act, over and above any federal funding, is at least \$18 million. (Respondents did not present any admissible evidence to contest this figure in the lower courts.)

Moreover, federal financial assistance appears to be limited to a postal discount for mailings and an announcement by the Department of Health and Human Services that voter registration assistance to AFDC clients will be reimbursable at the normal administrative match rate of fifty percent (50%).

Implementation of the Act will also require the State to revise, in wholesale fashion, the California Elections Code in order to conform state registration law with the new requirements for registration for federal elections. Indeed, the State will have to either conform its own state registration procedures for *state* elections with the Act's federal requirements for federal elections or go to the extraordinary expense of having separate voter registration rolls for state and federal elections.

B. The Proceedings Below

1. The Governor's Executive Order

By executive order dated August 12, 1994, Governor Wilson designated various state agencies as federal voter registration agencies as required by the Act. He directed the agencies to implement the Act – but only to the extent federal funding was made available for such purposes.

2. The District Court Proceedings and the Basis for Federal Jurisdiction in the District Court

On December 15, 1994, certain respondents – the Voting Rights Coalition and others³ (the “Voting Rights Coalition plaintiffs”) – brought this action for declaratory and injunctive relief in the U.S. District Court for the Northern District of California pursuant to 28 U.S.C. § 1331 and 42 U.S.C. § 1973gg-9, seeking enforcement of the Act.

On December 20, 1994, petitioners – Governor Wilson and the State of California – brought their own action against the United States; U.S. Attorney General Janet Reno; the Chairman of the Federal Elections Commission; and the Federal Elections Commission (the “federal respondents”) for declaratory and injunctive relief pursuant to 28 U.S.C. § 1331, seeking to enjoin enforcement of the Act, in whole or in part, on the grounds that the Act violated the Tenth Amendment.

The federal respondents thereafter answered and brought a counterclaim against Governor Wilson, the State of California, and the California Secretary of State for declaratory and injunctive relief, seeking to enjoin petitioners from refusing to comply with the Act pursuant to 28 U.S.C. §§ 1331, 1345 and 2201 and 42 U.S.C. § 1973gg-9(a), the latter of which authorizes the “Attorney General . . . [to] bring a civil action in an appropriate

³ The other parties were the Coalition for an African-American Community Agenda, League of Women Voters of California, California Common Cause, '94 Committee, Stella Dominquez, Cynthia Moreno, and Veronica Moreno.

district court for such declaratory or injunctive relief as is necessary to carry out this subchapter."

The district court consolidated the two actions. The petitioners, the federal respondents, and the Voting Rights Coalition plaintiffs filed motions for preliminary injunction, seeking to enforce or to enjoin enforcement of the "Motor Voter" Act. On February 17, 1995, the district court consolidated the hearing of the preliminary injunction motions with the trial on the merits pursuant to Rule 65(a)(1), Fed. R. Civ. P., and set the hearing date for March 2, 1995.

At the conclusion of the hearing, the U.S. District Court issued a permanent injunction, entered March 2, 1995, ordering the State of California and Governor Pete Wilson to comply with the Act. Relying solely on *United States v. Manning*, 215 F. Supp. 272 (W.D.La. 1963), for the proposition that the Tenth Amendment does not reduce the powers of the United States, the Court reasoned:

" . . . Article I, Section 4 specifically states that Congress may make or alter state regulations concerning the time, place and manner of federal elections. Consequently, Congress through the NVRA may directly regulate the state's manner and means of voter registration without invading an area reserved to the states."

Wilson v. United States, 878 F. Supp. 1324, 1328 (N.D. Cal. 1995).

3. The Appeal To the Ninth Circuit

On March 9, 1995, petitioners filed a timely notice of appeal from the district court's injunction. The Court of Appeals had jurisdiction pursuant to 28 U.S.C. § 1291.

In the Ninth Circuit, petitioners again argued that the "Motor Voter" Act violated the Tenth Amendment by

conscripting state agencies and employees to administer a federal regulatory program, citing, in part, this Court's ruling in *New York v. United States*, 505 U.S. 144, 188 (1992), that the "Federal Government may not compel the States to enact or administer a federal regulatory program."

The Ninth Circuit rejected that argument on the grounds that *New York* was decided under the Commerce Clause, whereas the congressional power here was granted under Article I, section 4. The Ninth Circuit then concluded – without citing any authority therefor – that Article I, section 4 empowers the Congress to conscript state agencies:

"The flaw in the State of California's argument is that it ignores Article I, section 4, which, unlike the commerce power in Article I, section 8, empowers Congress to impose on the states precisely the burden at issue.

Congress may conscript state agencies to carry out voter registration for the election of Representatives and Senators. The exercise of that power by Congress is by its terms intended to be borne by the states without compensation."

Voting Rights Coalition v. Wilson, 60 F.3d at 1415.

4. Other States' Challenges to the Motor Voter Act

In addition to California, four other states challenged the constitutionality of the Motor Voter Act: Illinois, Pennsylvania, South Carolina, and Virginia.

On January 23, 1995, the U.S. Department of Justice sued Illinois and Pennsylvania as well as California for their refusal to implement the Act. *See, e.g., Association of*

Community Organizations for Reform Now v. Edgar, 56 F.3d 791 (7th Cir. 1995). South Carolina and Virginia, like California, sued the federal government. *Condon v. Reno*, Civ. Action No. 3-95-192-0 (U.S.D.C., D.S.C.); *Commonwealth of Virginia v. United States*, Civil Action No. 3:95CV357 (RLW) (U.S.D.C., E.D. Va.).

Although the Seventh Circuit – the only other circuit to rule on the “Motor Voter” Act – rejected Illinois’s challenge to the Act, Illinois had primarily challenged the Act on the grounds it altered the qualifications for voters set by the State. *Association of Community Organizations for Reform Now v. Edgar*, 56 F.3d at 794-796.

Still, the fact that five states have separately challenged the constitutionality of the Act highlights the serious intrusion on state sovereignty which the Act constitutes. Even the federal government acknowledged in the district court that the Act was an unprecedented conscription of state agencies and employees into the service of the federal government.

REASONS FOR GRANTING THE PETITION

This is the next logical case for this Court to address in its efforts to preserve federalism. All of this Court’s recent cases on the subject have addressed the constraint imposed by federalism on Congress’s exercise of its Commerce Clause powers. E.g., *United States v. Lopez*, ___ U.S. ___, 131 L.Ed.2d 626 (1995); *New York v. United States*, 505 U.S. 144 (1992); and *Gregory v. Ashcroft*, 501 U.S. 452 (1991). Even the earlier cases which grappled with federalism – *National League of Cities v. Usery*, 426 U.S. 833 (1976), overruled, *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U.S. 528 (1985) – addressed the Tenth

Amendment in the context of Congress's Commerce Clause powers.

The instant case gives this Court the opportunity to address whether, and the extent to which, the Tenth Amendment constrains Congress's *other* Article I powers – here, Congress's power under Article I, section 4 to make or alter regulations specifying the time, place and manner of holding federal elections. Both the district court and the Ninth Circuit took the position that “unlike the commerce power in Article I, section 8, [Article I, section 4] empowers Congress to impose on the state precisely the burden at issue.” *Voting Rights Coalition v. Wilson*, 60 F.3d at 1415. The lower courts also limited to the Commerce Clause context this Court's unqualified ruling in *New York v. United States*, 505 U.S. 144, 188 (1992), that the “Federal Government may not compel the states to enact or administer a federal regulatory program” – another issue which needs clarification and which this case raises.

Finally, this case presents the unsettled issue of whether Congress has the power under Article I (in this case, under Article I, section 4) to conscript state agencies and employees to administer a federal program that is entirely unrelated to their state-paid duties. In this case, the Motor Voter Act, in an unprecedented expansion of federal power, directs the Department of Motor Vehicles and public assistance agencies, to administer a federal voter registration scheme, although these agencies ordinarily have nothing to do with voting or elections. The Motor Voter Act therefore raises the issue whether Congress's Article I powers authorize Congress to radically alter the nature of the responsibilities of state agencies and the nature of the job descriptions of their employees.

Nothing less is at stake than state autonomy and the right of states to organize their own governments, since once Congress can commandeer state agencies whose responsibilities are outside the field that Congress is empowered to regulate, Congress can shift with ease the cost of any federal measure to state government. Although this Court in *New York v. United States*, *supra*, 505 U.S. at 188, observed that "[t]he positions occupied by state officials appear nowhere on the Federal Government's most detailed organizational chart," the Ninth Circuit in this case deemed *New York* irrelevant, and recently, in the cases arising out of the federal duties imposed by the Brady Act on local law enforcement officials, has again approved the conscription of state employees. *Mack v. United States*, 1995 U.S. App. Lexis 25263 (9th Cir. 1995). Thus, the question of Congress's power to conscript into federal service state employees, and the consequent impact on state sovereignty is ripe for clarification by this Court.

Accordingly, this Court should grant review of this case so that it can settle the following important questions central to federalism:

1. Whether the ruling in *New York v. United States*, *supra*, 505 U.S. at 188, that the "Federal Government may not compel the States to enact or administer a federal regulatory program" is limited to the exercise of Congress's power under the Commerce Clause, or whether, to the contrary, Congress's enactment of the Motor Voter Act under Article I, section 4 is subject to this Court's ruling in *New York*.

2. Regardless of whether *New York* applies to this Act, whether it nonetheless violates the Tenth Amendment for Congress to exercise its powers under Article I

to commandeer state employees to administer a federal program that is wholly outside the scope of their state responsibilities.

3. Conversely, whether Congress's power to regulate the time, place, and manner of federal elections under Article I, section 4 of the Constitution authorizes it to commandeer state agencies and employees not involved in the election process.

4. If Article I, section 4 does not authorize Congress to commandeer state agencies and state employees, whether the Motor Voter Act is authorized under the Fourteenth and Fifteenth Amendments.⁴

A. This Court Should Settle The Important Question Whether The Ruling In *New York v. United States* Is Limited To Congress's Exercise Of Power Under The Commerce Clause

In *New York v. United States*, *supra*, 505 U.S. 144, 188, this Court ruled that "[w]hatever the outer limits of [state] sovereignty may be, one thing is clear: The Federal Government may not compel the States to enact or administer a federal regulatory program."

However, the Motor Voter Act does exactly that. It compels each State to administer a federal regulatory program by requiring each State to "designate agencies for the registration of voters in elections for Federal office," 42 U.S.C. § 1973gg-5(a)(1), to "designate a State officer or employee as the chief State election official to be responsible for coordination of State responsibilities

⁴ This issue was fully briefed but never reached by the lower courts because they found that Article I, section 4 did authorize Congress to conscript state employees.

under this Act," 42 U.S.C. § 1973gg-8, and to work with the Secretary of Defense to develop and implement procedures so that persons may apply to register to vote at military recruitment offices, 42 U.S.C. § 1973gg-5. The Act then requires the state agencies to prepare voter registration forms pursuant to federal standards, to provide registration assistance pursuant to federal guidelines, and to process the completed forms.

In *New York*, this Court held that although Congress had the power to regulate low-level radioactive waste directly, the Low Level Radioactive Waste Policy Amendments Act violated the Tenth Amendment when it directed the States to regulate the disposal of radioactive waste according to federal standards. This Court observed that requiring the state governments to regulate pursuant to Congress's direction would "present a simple command to state governments to implement legislation enacted by Congress," 505 U.S. at 176, but that "even where Congress has authority under the Constitution to pass laws requiring or prohibiting certain acts, it lacks the power directly to compel the states to require or prohibit those acts." 505 U.S. at 166. This Court ruled:

"No matter how powerful the federal interest involved, the Constitution simply does not give Congress the authority to require the States to regulate. The Constitution instead gives Congress the authority to regulate matters directly and to pre-empt contrary state regulation. Where a federal interest is sufficiently strong to cause Congress to legislate, it must do so directly; it may not conscript state governments as its agents."

New York v. United States, 505 U.S. at 178.

Accordingly, in this case, the "Motor Voter" Act constitutes an unconstitutional exercise of congressional power since it conscripts state governments as its agents when it directs each State to: "designate agencies for the registration of voters in elections for Federal office," 42 U.S.C. § 1973gg-5(a)(1); "designate a State officer or employee as the chief State election official to be responsible for coordination of State responsibilities under this Act," 42 U.S.C. § 1973gg-8; and develop procedures jointly with the Secretary of Defense, 42 U.S.C. § 1973gg-5.

Rather than follow *New York*, the district court and the Ninth Circuit chose to limit this Court's ruling in *New York v. United States*, *id.*, 505 U.S. 144, to Congress's exercise of its Commerce Clause powers. Without any citations, the Ninth Circuit ruled that "[t]he flaw in the State of California's argument is that it ignores Article I, section 4, which, unlike the commerce power in Article I, section 8, empowers Congress to impose on the states precisely the burden at issue. [¶] Congress may conscript state agencies to carry out voter registration for the election of Representatives and Senators." *Voting Rights Coalition v. Wilson*, 60 F.3d at 1415.

Yet, nothing in *New York* suggests that the ruling should be limited to Congress's exercise of its Commerce Clause powers. Instead, without restricting itself to the Commerce Clause, this Court stated in *New York*, "[W]e have always understood that even where Congress has the authority under the Constitution to pass laws requiring or prohibiting certain acts, it lacks the power directly to compel the States to require or prohibit those acts." *New York v. United States*, 505 U.S. at 166. Likewise, this Court stated in *New York* that "[t]he Tenth Amendment

thus directs us to determine, as in this case, whether an incident of state sovereignty is protected by a limitation on an *Article I* power." [Emphasis added] 505 U.S. at 157.

Nonetheless, the Ninth Circuit and other circuits have narrowly construed the ruling in *New York*.

For instance, the Seventh Circuit, in upholding the constitutionality of the "Motor Voter" Act in *Association of Community Organizations For Reform Now v. Edgar*, 56 F.3d 791 (1995), stated its belief that recent opinions of this Court mean that "the Tenth Amendment (not even cited by Illinois) [has been] put back in its bottle" and therefore that no "extratextual limitation" constrains Article I, section 4, which "places the burden of administering federal elections on the states." Yet, this confuses the distinction between regulating the manner of elections (which is permitted under Article I, section 4) and directing the States to compel certain state agencies to administer them.

Moreover, not long after issuing its decision in the instant case – which limited *New York* to laws enacted under the Commerce Clause – the Ninth Circuit again restricted the reach of *New York*. In *Mack v. U.S.*, 1995 U.S. App.Lexis 25263 (9th Cir. 1995), the Ninth Circuit upheld the constitutionality of a provision in the Brady Act, which requires local law enforcement officials to perform background checks on handgun purchasers – even though the Ninth Circuit acknowledged that it "requires state law enforcement officials, the CLEOs, to make reasonable efforts to assist in carrying out the federal program." Nonetheless, the Ninth Circuit in *Mack* concluded that "[a]lthough we concede that there is language in *New York* that lends support to the view of *Mack* . . . , that language must be interpreted in the context in which it

was offered. *New York* was concerned with a federal intrusion on the States of a different kind and much greater magnitude than any involved in the Brady Act."

In conclusion, this Court should clarify whether the *New York* decision is limited to Congress's exercise of its Commerce Clause powers as ruled by the Ninth Circuit, or extends to Congress's exercise of powers under Article I, section 4.

B. This Court Should Settle The Important Question Of Whether The Tenth Amendment Prohibits Congress From Conscripting Into The Service Of The Federal Government State Employees And Agencies Whose Responsibilities Are Unrelated To The Article I Power Which Congress Is Exercising

This case also raises an important but long unsettled question of federalism: To what extent may Congress, in the exercise of its Article I powers, conscript state agencies and state employees to perform federal duties, particularly where those duties are wholly outside their normal field of work.

1. The Extent To Which Congress May Conscript State Employees Is Unsettled

States can only act through their elected officials and agents. A state's capability to function as a sovereign government requires that state employees act for the state, not the federal, government. Just as "[t]he power to tax is the power to destroy," *McCulloch v. Maryland*, 17 U.S. 316 (1819), the power to impose time-consuming federal responsibilities on state agencies carries the power to destroy state autonomy. Moreover, the power to

determine the scope of the responsibilities of state officials and state agencies, as well as to fix the budget for administering those responsibilities, is peculiarly an attribute of state sovereignty, no less than the power of the State to determine where to place its seat of government. See *Coyne v. Smith*, 221 U.S. 559 (1911) (upholding Oklahoma's legislation relocating the state's capital, notwithstanding a restriction thereon in the congressional enabling act, under which the state was admitted to the Union). Accordingly, federal laws which conscript state employees, on state time, to assume responsibility for administering federal programs necessarily intrude on the state's sovereignty to carry out its own programs - unless, of course, the state has consented to perform the program as a condition for the receipt of federal funds. See *New York v. United States*, *supra*, 505 U.S. at 167; *South Dakota v. Dole*, 483 U.S. 203, 206 (1987).

However, the extent to which the federal government may conscript state employees to carry out federal responsibilities is unsettled. In *Federal Energy Regulatory Commission v. Mississippi*, 456 U.S. 742 (1982), this Court observed that "the 19th Century view, expressed in a well-known slavery case, was that Congress 'has no power to impose on a State officer, as such, any duty whatever, and compel him to perform it,'" *id.* at 761, quoting *Kentucky v. Dennison*, 24 How. 66, 107, 16 L.Ed. 717 (1861), but that "this rigid and isolated statement . . . is not representative of the law today. [footnote omitted]." This Court, however, declined in that case "to make a definitive choice between competing views of federal power to compel state regulatory activity." *Id.* at 764.

Since then, this Court has expressed disapproval of the federal government's conscripting of state agencies

and employees, but has not definitively resolved the issue. In *Bowen v. American Hospital Assn.*, 476 U.S. 610 (1986), this Court addressed whether Section 504 of the Rehabilitation Act authorized the issuance of a *federal* regulation that required designated *state* agencies to establish procedures to compel health care providers to report known or suspected instances of unlawful medical neglect of handicapped infants. This Court, in an opinion by Justice Stevens, observed that the regulations "effectively make medical neglect of handicapped newborns a state investigative priority, possibly forcing state agencies to shift scarce resources away from other enforcement activities. . . ." 476 U.S. at 639. The Court observed that while state agencies can be requested to document their own compliance with Section 504, "nothing in that provision authorizes him [the Secretary] to commandeer state agencies to enforce compliance by *other* recipients of federal funds (in this instance, hospitals)" and that "State child protective services agencies are not field offices of the HHS bureaucracy, and they may not be conscripted against their will as the foot soldiers in a federal crusade." 476 U.S. at 642.

This proposition was repeated in *New York, supra*, 505 U.S. at 178, where this Court stated:

"States are not mere political subdivisions of the United States. State governments are neither regional offices nor administrative agencies of the Federal Government. The positions occupied by state officials appear nowhere on the Federal Government's most detailed organizational chart. The Constitution instead 'leaves to the several States a residuary and inviolable sovereignty,' The Federalist No. 39, p. 245 (C.

Rossiter ed. 1961), reserved explicitly to the States by the Tenth Amendment."

New York v. United States, 505 U.S. at 188.

Nonetheless, the Ninth Circuit – without citation to any authority whatsoever – ruled that "Congress may conscript state agencies to carry out voter registration for the election of Representatives and Senators." 60 F.3d at 1415. This Court needs to resolve this unsettled question over the extent of Congress's power to commandeer state employees to administer a federal program.

Indeed, the instant case raises the issue of conscription in particularly egregious circumstances because the Motor Voter Act seeks to conscript state employees whose responsibilities are wholly unrelated to the administration of election laws and thus outside the field which Congress is authorized to regulate under Article I, section 4. Congress is not seeking merely to regulate state election officials in their conduct of federal elections, but instead, to commandeer state employees at the State Department of Motor Vehicles and in public assistance agencies, whose state-mandated duties are wholly unrelated to the election responsibilities which Article I, Section 4 authorizes Congress to regulate.

Nor is this the only case in which the Ninth Circuit has approved the federal conscription of state employees. In *Mack v. United States*, 1995 U.S. App. Lexis 25263 (9th Cir. 1995), the Ninth Circuit recently upheld, against a Tenth Amendment challenge, the Brady Act's federal mandate that state law enforcement officials perform background checks of handgun purchasers. Once again, citing no authority, the Ninth Circuit reasoned that state employees could be conscripted by Congress because

"[t]he Brady Act is a regulatory program aimed at individuals and not the States":

"It is true that, for a limited period of time, the Act requires *state* law enforcement officials, the CLEOs, to make reasonable efforts to assist in carrying out the federal program. But the CLEOs are not being commanded to engage in the central sovereign processes of enacting legislation or regulations. . . . Their activities are not alien to their usual line of work, and represent a minimal interference with state functions. In that sense, their duties are not different from other minor obligations that Congress has imposed on state officials." [Emphasis added.]

Whatever Congress's right may be to conscript state employees to administer the federal program required under the Brady Act, the conscription of state employees in the present case goes well beyond the circumstances in the Brady Act. As observed by the Ninth Circuit in *Mack*, the background investigation required by the Brady Act was "not alien" to the state law enforcement officials' "usual line of work." Here, in contrast, employees of the State Department of Motor Vehicles and state public assistance agencies are being commandeered to perform federal registration duties wholly outside their "usual line of work" and to administer Motor Voter's registration program on state time.

The Ninth Circuit's decisions in the *Mack* case and the instant proceeding demonstrate that this Court should grant certiorari to determine the extent to which the Congress, in the exercise of its Article I powers, can conscript state agencies and state employees and require them to assume federal duties wholly outside their normal field of work.

2. Federal Conscription of State Employees Raises Issues of Political Accountability Upon Which Our Federal System Rests

Conscription of state employees to assume federal responsibilities outside the scope of their normal duties also raises the issue of accountability, which goes to the heart of our federal system. In *New York v. United States*, 505 U.S. 144, this Court observed that "where the Federal Government compels States to regulate, the accountability of both state and federal officials is diminished" because "it may be state officials who will bear the brunt of public disapproval, while the federal officials who devised the regulatory program may remain insulated from the electoral ramifications of their decision." *Id.* at 168-9. Likewise, in his concurring opinion, joined by Justice O'Connor, in *United States v. Lopez*, *supra*, 131 L.Ed.2d 626, Justice Kennedy stated that in order for the federal and state governments to control each other by competing for the affections of the people, "those citizens must have some means of knowing which of the two governments to hold accountable for the failure to perform a given function."

In this case, state employees will be held responsible for the longer lines and greater delays at the Department of Motor Vehicles and public assistance offices, although the federal government's mandate that they assume federal voter registration responsibilities is the cause therefor. In essence, the federal government can insulate itself from the effects of its directives when it commandeers state agencies and employees to administer a federal program.

C. Alternatively, This Court Should Decide The Important Question Whether Article I, Section 4 Of The Constitution Authorizes Congress To Commandeer State Employees And Agencies Whose Responsibilities Are Unrelated To The Administration Of State Election Laws

Article I, section 4 of the U.S. Constitution provides as follows:

"The times, places and manner of holding elections for Senators and Representatives, shall be prescribed in each state by the legislature thereof; but the Congress may at any time by law make or alter such regulations, except as to the places of chusing Senators."

Manifestly, nothing in the text of that section authorizes (or requires) Congress to commandeer state agencies and employees, whose duties are unrelated to the elections process, to administer federal elections. Nonetheless, the Ninth Circuit, in the opinion below, referred to the "array of authorities supporting a broad reach of Article I, section 4," 60 F.3d at 1414, and ruled: "The flaw in the State of California's argument is that it ignores Article I, section 4, which, unlike the commerce power in Article I, section 8, empowers Congress to impose on the states precisely the burden at issue." *Voting Rights Coalition v. Wilson*, *id.*, 60 F.3d at 1415.

This case thus raises the question whether Article I, section 4 may properly be construed as authorizing Congress to commandeer state employees and agencies not involved in the election process to administer the "Motor Voter" Act.

In preserving our federalist system, this Court often construes statutes and constitutional powers to avoid upsetting the federal balance. Thus, the Court construed

the Age Discrimination in Employment Act so as not to intrude on the States' right to set a mandatory retirement age for state judges, *Gregory v. Ashcroft*, 501 U.S. 452 (1991), and it construed the Commerce Clause power so as not to authorize the enactment of a Gun-Free School Zones Act, in partial recognition of the fact that "in areas such as criminal law enforcement or education . . . States historically have been sovereign." *United States v. Lopez*, ___ U.S. ___, 115 S.Ct. 1624, 131 L.Ed.2d 626, 641 (1995).

Likewise, this case presents an opportunity for the Court to construe Article I, section 4 in a way that does not authorize Congress to override the protections for state sovereignty embodied in the Tenth Amendment.

Despite the Ninth Circuit's decision to the contrary, no decision of this Court has ruled that Congress's authorization under Article I, section 4 means that Congress may conscript into the service of the Federal Government state agencies whose responsibilities are unrelated to the administration of the time, place, and manner of conducting elections.

Even the broadest decision on the reach of Article I, section 4, *Ex Parte Siebold*, 100 U.S. 371 (1879), merely ruled that Congress "may impose additional penalties for the prevention of frauds committed by the state officers . . .," *id.* at 387, rejecting the argument that Congress had "no constitutional power to make partial regulations intended to be carried out in conjunction with regulations made by the States." *Id.* at 382.

That ruling is a far cry from commandeering state employees to administer a federal regulatory program, where those employees are not election officials and have no election duties to be regulated in accordance with Congress's Article I, section 4 power.

Indeed, the framers surely never envisioned that Article I, section 4 would be construed to authorize the federal government's conscription of state employees who work in state agencies not responsible for the administration of elections. See *Federalist* No. 59 (observing that the Article I, section 4 power was solely designed to allow Congress to regulate federal elections in "extraordinary circumstances" to prevent the States from refusing to conduct federal elections).

As this Court observed in connection with Article I, section 4 in *Buckley v. Valeo*, 424 U.S. 1, 132 (1976), "[w]e see no reason to believe that the authority of Congress over federal election practices is of such a wholly different nature from the other grants of authority to Congress that it may be employed in such a manner as to offend well-established constitutional restrictions stemming from the separation of powers."

Moreover, the enactment of laws under Article I, section 4 requires special scrutiny because the self-interest of Congress in the regulation of federal elections may conflict with its interest in preserving the federal system established by the Constitution. This Court acknowledged in *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U.S. 528, 554 (1985), that the courts can intervene "to compensate for possible failings in the national political process" when the States' participation in Congress will not protect the States from intrusions into state sovereignty. Such a possible failing exists when Congress exercises its power under Article I, section 4 to regulate federal elections, because its members have a conflict of interest between the enactment of measures which may assist in their election, and the maintenance of the delicate federal-state balance. In short, "the interests

of public officials . . . may not coincide with the Constitution's intergovernmental allocation of authority." *New York v. United States*, 505 U.S. at 183. Hence, where the Congress's Article I, section 4 power is involved, this Court must be particularly vigilant to avoid an exercise of that power which infringes on state sovereignty.

Accordingly, this Court should settle the important question whether Article I, section 4 – or any Article I power, for that matter – should be construed to authorize the commandeering of state agencies and employees whose duties fall outside the scope of the Article I power granted Congress.

D. This Case Also Raises The Question Whether Either The Fourteenth Or Fifteenth Amendment Grants Congress The Power To Enact The National Voter Registration Act

Because the district court and Ninth Circuit held that the Motor Voter Act was authorized under Article I, section 4 and did not violate the Tenth Amendment, neither court addressed respondents' other argument that the Fourteenth or Fifteenth Amendment authorized the Act.

However, were this Court to grant this petition and determine that Article I, section 4 cannot constitutionally authorize Congress to conscript state agencies and employees to administer the federal voter registration program required by the Motor Voter Act, the issue whether the Act is authorized by the Fourteenth or Fifteenth Amendment would be raised.

This issue, fully briefed in the courts below, presents an important question regarding the relationship between the Civil War Amendments and the Tenth Amendment.

Both the Fourteenth and Fifteenth Amendments grant Congress the power to enforce their provisions by "appropriate legislation." However, petitioners' position in the courts below was that the Motor Voter Act was not "appropriate" legislation because it was not directed toward removing discriminatory registration requirements, but merely toward making registration more convenient.

Few cases define what constitutes "appropriate legislation" under those amendments. However, a review of this Court's cases suggests that the type of legislation deemed "appropriate" under the enforcement clauses of those amendments is legislation which furthers the *prohibitions* of those amendments, such as enactments that prohibit certain practices which have a discriminatory effect, *e.g.*, *City of Rome v. United States*, 446 U.S. 177 (1979) ("It is clear, then, that under § 2 of the Fifteenth Amendment Congress may prohibit practices that in and of themselves do not violate § 1 of the Amendment, so long as the prohibitions attacking racial discrimination in voting are 'appropriate' . . . "); *Ex Parte Virginia*, 100 U.S. 339 (1880) (Congress may bar practices which in themselves do not violate the Civil War Amendments so long as the prohibitions are appropriate, and are "adopted to carry out the objects.".)

Where Congress is not attacking an evil prohibited by the Fourteenth or Fifteenth Amendments, this Court has found that Congress cannot constitutionally exercise its powers under those amendments. For instance, in *United States v. Reese*, 92 U.S. 214, 218 (1875), cited with approval by this Court in *State of South Carolina v. Katzenbach*, 383 U.S. 301, 326 (1966), this Court ruled that Congress had not properly exercised its power under the

Fifteenth Amendment when it enacted legislation which prohibited all wrongful acts that obstructed a citizen from qualifying to vote because it was not limited to addressing racial discrimination but instead broadly prohibited any act that obstructed a citizen from qualifying to vote.

In this case, the Motor Voter Act does not seek to address discriminatory or unfair practices of the nature which the Fourteenth and Fifteenth Amendments were meant to address, but simply attempts to make it more *convenient* for people to register. And it seeks to do so by conscripting state agencies which had never administered election laws, and thus could not have engaged in any discrimination in the administration of elections.

This Court should therefore decide whether the Motor Voter Act constitutes "appropriate" legislation under the Fourteenth or Fifteenth Amendments. There is little case law on this subject, and a decision would clarify the restraints on federal power when exercised under the Civil War Amendments. Further, since the Act conscripts state employees, this case also raises the balance between the Civil War Amendments and the Tenth Amendment, *cf. Oregon v. Mitchell*, 400 U.S. 111, 128 (1970). This case would be the first to provide some critical guidance in this area.

CONCLUSION

This case presents an unusual opportunity for the Court to address a number of Tenth Amendment issues, including the extent of the Tenth Amendment's restraint on Congress's Article I powers other than the Commerce Clause, the reach of *New York v. United States*, the power of Congress to exercise its Article I power to conscript state agencies and state employees to administer a federal

program, the extent to which Article I, section 4 may be construed to authorize Congress to conscript state agencies and their employees whose responsibilities were heretofore unrelated to the administration of elections, and the relationship between the Civil War Amendments and the Tenth Amendment.

Petitioners respectfully request that this Court grant their petition for writ of certiorari so that the Court may take the next step in the preservation of our federalist system.

Dated: October 23, 1995

Respectfully submitted,

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App. 1

FOR PUBLICATION
UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

VOTING RIGHTS COALITION;
COALITION FOR AN AFRICAN-
AMERICAN COMMUNITY AGENDA;
LEAGUE OF WOMEN VOTERS OF
CALIFORNIA; CALIFORNIA COMMON
CAUSE; '94 COMMITTEE; STELLA
DOMINQUEZ; CYNTHIA MORENO; and
VERONICA MORENO,

Plaintiffs-Appellees,

v.

PETE WILSON, Governor of the
State of California; TONY MILLER,
Acting Secretary of State,
California; FRANK ZOLIN, Director
of the California Department of
Motor Vehicles; ELOISE ANDERSON,
Director of the California
Department of Social Services;
BRENDA PREMO, Director of the
California Department of
Rehabilitation,

Defendants-Appellants.

v.

JANET RENO, Attorney General;
UNITED STATES OF AMERICA,

Third Party Plaintiffs-Appellees.

No. 95-15449

D.C. No.
CV-94-20860-JW

OPINION

App. 2

Appeal from the United States District Court
for the Northern District of California
James Ware, District Judge, Presiding

Argued and Submitted
June 16, 1995 – San Francisco, California

Filed July 24, 1995

Before: Alfred T. Goodwin, Joseph T. Sneed,
and Andrew J. Kleinfeld, Circuit Judges.

Opinion by Judge Sneed

COUNSEL

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Miriam E. Brewster, Deputy Attorney, County of San Diego, San Diego, California; Anton Leof, Latham & Watkins, San Francisco, California; Michael J. Guzman, Latham & Watkins, Washington, DC; Daniel J. Popeo, Washington Legal Foundation, Washington, DC; Joseph Remcho, Remcho, Johansen & Purcell, San Francisco, California; Donald W. Brown, Brobeck, Phleger & Harrison, San Francisco, California; Douglas I. Horngrad, San Francisco, California, for amici.

OPINION

SNEED, Circuit Judge:

Governor Wilson, in his official capacity, directed the appropriate officials of the State of California not to comply with the National Voter Registration Act of 1993, 42 U.S.C. §§ 1973gg-1 to -10 ("the Act"), on constitutional grounds. The Voting Rights Coalition, joined by the Attorney General of the United States, having come together as a result of a suit by the State of California against the United States to enjoin permanently the enforcement of the Act, obtained a permanent injunction in the district court enjoining California from failing to comply with the Act. The State of California sought to stay that injunction pending appeal by way of a motion to this court, which was denied. We affirm the judgment of the district court directing the State of California to comply with the Act.

The Act in form is not a simple directive to the states to provide voter registration at such places as the state receives applications for motor vehicle driver's licenses, and provides public assistance or services to persons with disabilities. Rather, it is a complex statute of ten sections bearing the marks of legislative draftsmanship similar to those borne by the Internal Revenue Code. For example, 42 U.S.C. § 1973gg-3, entitled "SIMULTANEOUS APPLICATION FOR VOTER REGISTRATION AND APPLICATION FOR MOTOR VEHICLE DRIVER'S LICENSE," contains five subsections, (a) through (e), of which the third, (c), sets forth its own two subsections, (1) and (2), and of which the section (2) sets forth its five subsections,

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(A) through (E). That is not all. Within (A) through (E), there appear in (C) and (D) three subsections each. Thus, following the caption of section 3 of the Act, the State of California must conform to four levels of statutory structures.

This complexity suggests that the implementation of this Act could generate differences between the United States and California of interpretive and, possibly, constitutional importance. For this reason, our opinion is not intended to foreclose future judicial review of any such issues. Today we speak only with respect to an as yet unapplied statute. As a consequence, we assume, but do not decide, that all such interpretive or constitutional issues that might arise in the implementation of the Act do not impair our analysis of the Act's facial constitutionality.

Three provisions of the Constitution must be considered in our analysis of the constitutionality of the Act. The most important is Article I, section 4, which vests in Congress the power to alter state laws pertaining to the "Times, Places and Manner" of electing Representatives and Senators. The second is Article I, section 2, which gives the states the power to fix the qualifications of its voters. The third, on which California primarily relies, is the Tenth Amendment.

The relevant portion of Article I, section 4 reads as follows:

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by

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Law make or alter such Regulations, except as to the Places of chusing Senators.

U.S. Const. art. I, Sec. 4, cl. 1. Initially, two aspects of the provision appear. No limits on this power are stated and registration procedures are not mentioned. As Chief Judge Posner of the Seventh Circuit pointed out in *Association of Community Orgs. for Reform Now (ACORN) v. Edgar*, No. 95-1800, 1995 WL 329726, at *1 (7th Cir. June 5, 1995) summarized in 63 U.S.L.W. 2776, 2777 (7th Cir. June 20, 1995) (No. 95-1800), registration did not exist as a procedure, separate from establishing one's qualifications to vote at the time and place of voting, when the Constitution was drafted. As a consequence, Article I, section 2 and the Seventeenth Amendment, in vesting the power to fix the qualifications of voters for Representatives and Senators in the states, do not explicitly remove the registration of voters by the states from the reach of the power of Congress, provided by Article I, section 4. The fact that some states include registration in their enumeration of qualifications does not alter this conclusion.¹

Moreover, the Supreme Court has read the grant of power to Congress in Article I, section 4 as quite broad. In *Smiley v. Holm*, 285 U.S. 355, 366 (1932), the Court stated that Congress has

¹ With respect to this circuit, Alaska, Hawaii, Montana and Oregon treat registration as a qualification of voting. See Alaska Const. art. V, § 1; Alaska Stat. § 15.05.010 (1988); Haw. Const. art. II, § 1; Haw.Rev.Stat. § 11-11 (1985); Mont. Const. art. IV, § 2; Mont.Code Ann. § 13-1-111 (1994); Or. Const. art. II, § 2; Or.Rev.Stat. §§ 247.002, 247.009 (1993).

authority to provide a complete code for congressional elections, not only as to times and places, but in relation to notices, registration, supervision of voting, protection of voters, prevention of fraud and corrupt practices, counting of votes, duties of inspectors and canvassers, and making and publication of election returns; in short, to enact the numerous requirements as to procedure and safeguards which experience shows are necessary in order to enforce the fundamental right involved.

At an earlier date, *Ex Parte Siebold*, 100 U.S. 371, 382-97 (1879), upheld the power of Congress to impose duties, prohibitions, and sanctions for state election officials involved in conducting elections for federal office. Conflicting state laws were set aside.² 100 U.S. at 397.

² The Court continued to interpret broadly Congress's power under Article I, section 4. See *Roudebush v. Hartke*, 405 U.S. 15, 24-25 (1972) (authority to regulate recount of elections); *United States v. Gradwell*, 243 U.S. 476, 483 (1917) (full authority over federal election process, from registration to certification of results); *United States v. Mosley*, 238 U.S. 383, 386 (1915) (authority to enforce the right to cast ballot and have ballot counted); *In re Coy*, 127 U.S. 731, 752 (1888) (authority to regulate conduct at any election coinciding with federal contest); *Ex parte Yarbrough*, 110 U.S. 651, 662 (1884) (authority to make additional laws for free, pure, and safe exercise of right to vote); *Ex parte Clarke*, 100 U.S. 399, 404 (1879) (authority to punish state election officers for violation of state duties vis-a-vis Congressional elections); see also *United States v. Simms*, 508 F.Supp. 1179, 1183-85 (W.D.La.1979) (criminalizing payments in reference to registration or voting does not offend Tenth Amendment); *Prigmore v. Renfro*, 356 F.Supp. 427, 430 (N.D.Ala.1972) (absentee ballot program upheld as applied to federal elections), *aff'd*, 410 U.S. 919 (1973); *Fowler v. Adams*, 315 F.Supp. 592, 594 (M.D.Fla.1970), *appeal dismissed*, 400 U.S. 986 (1971) (authority to exact 5 percent filing fee for Congressional elections).

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The broad power given to Congress over congressional elections has been extended to presidential elections, *Burroughs v. United States*, 290 U.S. 534, 545 (1934), and to party primaries involving contestants for congressional positions, *United States v. Classic*, 313 U.S. 299, 317 (1941). Judge Wisdom of the Fifth Circuit, while sitting on a three-judge district court in *United States v. Manning*, 215 F.Supp. 272, 284 (W.D.La.1963), expansively observed that " 'the manner of holding elections' therefore must be read as referring to the entire electoral process, from the first step of registering to the last step, the [s]tate's promulgation of honest returns." It is not necessary to rely on a reading of Article I, section 4 of such breadth to find that the Act before us, on its face, fits comfortably within its grasp. However, we are reminded that Justice Black in *Oregon v. Mitchell*, 400 U.S. 112, 123-25 (1970), in his plurality opinion, recognized that, while Congress could lower the voting age in federal elections from twenty-one to eighteen, Article I, section 2 bars Congress from doing so in elections for state officials.

This array of authorities supporting a broad reach of Article I, section 4 does not permit this court to limit its meaning to that given it by Hamilton in Federalist No. 59.³ He saw it as a means by which Congress could

³ The Federalist No. 59, at 399 (Alexander Hamilton) (Jacob E. Cooke ed., 1961):

Nothing can be more evident, than that an exclusive power of regulating elections for the National Government, in the hands of the State Legislatures, would leave the existence of the Union entirely at their mercy. They could at any moment annihilate it, by neglecting to provide for the choice of persons to

preserve itself from states seeking its destruction by refusing to conduct elections. Story enhanced its utility somewhat in his Commentaries.⁴

The Tenth Amendment position argued by the State of California rests on *New York v. United States*, 112 S.Ct. 2408, 2425-29 (1992), which held, in its relevant part, that Congress could not impose on the states the burden of exercising its power under the Constitution to regulate interstate commerce. Of course, Congress could obtain the consent of a state, or states, to undertake such a burden upon payment of a mutually acceptable consideration. The flaw in the State of California's argument is that it ignores Article I, section 4, which, unlike the commerce power in Article I, section 8, empowers Congress to impose on the states precisely the burden at issue.

Congress may conscript state agencies to carry out voter registration for the election of Representatives and Senators. The exercise of that power by Congress is by its

administer its affairs. It is to little purpose to say that a neglect or omission of this kind, would not be likely to take place. The constitutional possibility of the thing, without an equivalent for the risk, is an unanswerable objection. Nor has any satisfactory reason been yet assigned for incurring that risk.

⁴ Joseph Story, *Commentaries on the Constitution of the United States* 292-93 (Rotunda and Nowak ed. 1987). Story gave several justifications for Article 1, section 4: as a means to correct negligent state law, to impose a check on senatorial plots to prevent state citizens from holding elections, to ensure safe elections in times of invasion, and to prevent vacancies by maintaining uniformity in the times and manner of elections.

terms intended to be borne by the states without compensation. None of the authorities recognizing the exercise of the Times, Places and Manner power vested in Congress have suggested, even remotely, the necessity of the United States bearing the burden of any alteration it imposed. True, usually the actual cost to the states was relatively small, while in this instance, it may be significant. That does not change the principle which is embodied in Article I, section 4, but it does dictate that the implementation of the Act be done sensitively. To separate the power to command change from the burden of meeting its costs is always troublesome whatever its context. Nor is legitimate concern diminished by the fact that enactment of the Act was driven substantially by partisan politics.

It is not the role of this court to undertake at this time the difficult task of implementing the Act. Even a cursory glance at the Act suggests this will not be a simple undertaking. Even though the Act by its terms does not control the practices of voter registration for elections of state and local officials, its impact on such elections probably will be significant.

It is at this juncture that the sovereignty of the State of California under the Tenth Amendment becomes a constitutional concern. In *U.S. Term Limits, Inc. v. Thornton*, 115 S.Ct. 1842, 1872 (1995), Justice Kennedy, in his concurring opinion, explaining his decisive fifth vote in the decision to invalidate the effort of certain states to limit the terms their Representatives and Senators could serve in Congress, eloquently described the fundamental structure of the Constitution:

Federalism was our Nation's own discovery. The Framers split the atom of sovereignty. It was the genius of their idea that our citizens would have two political capacities, one state and one federal, each protected from incursion by the other. The resulting Constitution created a legal system unprecedented in form and design, establishing two orders of government, each with its own direct relationship, its own privity, its own set of mutual rights and obligations to the people who sustain it and are governed by it. It is appropriate to recall these origins, which instruct us as to the nature of the two different governments created and confirmed by the Constitution.

The State of California is a sovereign body within the Constitution. There can be no doubt of that, no less than of the power of Congress under Article I, section 4 of the Constitution. Absent the invocation by Congress of its authority under the Fourteenth Amendment, the State of California possesses the power to fix the time, place, and manner of the election of its officials. It follows, therefore, that an accommodation, as Justice Kennedy made clear, of sovereign rights is necessary.

Presently, we explicitly recognize that, inasmuch as Congress only sought to regulate the times, places, and manner of electing Representatives and Senators, it did not intend to perform the same function for state and local officials. No doubt it was recognized by Congress that the Act would have an impact on registration procedures applicable to state and local elections and even perhaps hoped that it would do so. Nonetheless, it did not attempt to do so explicitly.

The State of California, in supplemental briefing, has confirmed that the Act will have a significant impact on its registration procedures applicable to elections of state and local officials. However, at this point we cannot determine the extent to which, if at all, these changes impinge on the legitimate retained sovereignty of the states under the "two orders of government" (as Justice Kennedy put it) of the Constitution. Clearly, the Constitution denies to the states any power to obstruct the exercise by Congress of its power to "make or alter" the "Times, Places and Manner" of electing "Senators and Representatives," nor does it impose on the United States the burden, always heretofore borne by the states, of defraying the costs incurred by such alterations.

At this juncture of these proceedings, we can only direct the district court on remand to impose no burdens on the state not authorized by the Act which would impair the State of California's retained power to conduct its state elections as it sees fit. We foresee the possibility in which the district court will be asked to determine whether a certain implementation of the statute sought by the United States, which is helpful but not essential to its interests, is properly resisted by the state on substantial grounds related to its sovereignty. Should such occasions arise, we would expect the district court to respond with an informed understanding of the duality of sovereignty imbedded within the Constitution of the United States.

This adjuration springs from the same perception that led the unanimous Court of Appeals for the Seventh Circuit to strike from the district court's decree its fourth paragraph which Chief Judge Posner, in his opinion for

the court, described as failing "to exhibit an adequate sensitivity to the principle of federalism." *ACORN*, 1995 WL 329726, at *7.

We, too, by this opinion, direct the district court to approach its task of implementation with an "adequate sensitivity to the principle of federalism." This panel hereby retains jurisdiction in the event of subsequent proceedings and appeals.

No party to recover costs on appeal.

AFFIRMED AND REMANDED FOR IMPLEMENTATION.

UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF CALIFORNIA

PETE WILSON, Governor of)	
the State of California; STATE)	Case No.
OF CALIFORNIA,)	C 95-20042 JW
Plaintiffs,)	Case No.
vs.)	C 94-20860 JW
)	(Related Action)
UNITED STATES OF)	INJUNCTION
AMERICA; JANET RENO,)	ORDERING THE
Attorney General; TREVOR)	STATE OF
POTTER, Chairman, Federal)	CALIFORNIA AND
Elections Commission;)	GOVERNOR PETE
FEDERAL ELECTIONS)	WILSON TO
COMMISSION,)	COMPLY WITH THE
Defendants.)	NATIONAL VOTER
_____)	REGISTRATION ACT
	OF 1993

I. INTRODUCTION

This action questions whether the National Voter Registration Act, an otherwise laudable attempt by Congress to promote nondiscriminatory voter registration standards, is nevertheless unconstitutional because it invades powers reserved to the states.

The United States and a group of private citizens, which shall be referred to as "the Voting Rights Coalition," seek to compel the State of California and Governor Pete Wilson to comply with the National Voter Registration Act of 1993, 42 U.S.C. § 1973gg, *et seq.* ("NVRA"). The State of California and Governor Wilson seek to enjoin enforcement of the NVRA on the ground

that it is unconstitutional under the Tenth Amendment of the United States Constitution. For the reasons set forth below, the Court finds that the NVRA is constitutional and permanently enjoins the State of California and Governor Wilson from refusing to comply with its provisions.

II. FINDINGS OF FACT

There are no disputed issues of material fact. The NVRA provides that states requiring advance registration to vote in federal elections must permit voter registration by: (1) mail-in application; (2) simultaneous application with driver's license application, renewal, or change of address; and (3) simultaneous application at disability and public assistance agencies as well as other agencies designated by the state. See NVRA §§ 4-7, 42 U.S.C. §§ 1973gg-2 to 1973gg-5. The NVRA also establishes procedures and standards governing maintenance of voter registration rolls. NVRA § 8, 42 U.S.C. § 1973-6. States were required to comply with the NVRA by January 1, 1995. NVRA § 13, 42 U.S.C. § 1973gg note.

On August 12, 1994, Governor Wilson issued Executive Order No. V-98-94, which orders California state agencies to comply with the NVRA *only* "to the extent [that] federal funding is made available for such purposes." *Id.*

Believing the Governor's order was tantamount to a direct order that state agencies not implement the NVRA, on December 14, 1994, the Voting Rights Coalition and other interested private parties filed an action in this Court (*Voting Rights Coalition, et al. v. Pete Wilson, et al.*,

C 94-20860 JW) seeking to enforce the NVRA. Section 11 of the NVRA permits private enforcement suits. Subsequently, the State of California and Governor Wilson filed a lawsuit against the United States, the Attorney General of the United States, the Federal Elections Commission ("FEC") and the Chairman of the FEC, contending that the NVRA is unconstitutional and requesting that the Court permanently enjoin its enforcement.

On January 23, 1995, the United States filed an answer, counter-claim and third party complaint. The counter-claim alleges that the State of California is violating the NVRA and seeks to compel its enforcement.

On January 27, 1995, each of the parties filed a motion for a preliminary injunction. The United States and the private parties seek immediate enforcement of the NVRA. The State of California and Governor Wilson seek immediate restraint against enforcement. The Court determined that the constitutionality of the NVRA is a dispositive legal issue in both lawsuits and that its constitutionality could be decided on the merits at the hearing of the motions for preliminary injunction. Accordingly, on February 8, 1995, pursuant to Rule 65(a)(2) of the Federal Rules of Civil Procedure, the Court ordered the hearing on the merits of the constitutionality of the NVRA consolidated with the hearing on the motions for preliminary injunction.

On March 2, 1995 the case was argued and submitted for decision.

III. CONCLUSIONS OF LAW

A. Constitutionality of the NVRA

The Court begins the task of deciding the constitutionality of the NVRA by examining the language of the Constitution. Article I, Section 4 specifically states:

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators. U.S. Const. art. I, § 4, cl. 1.

Article I, Section 4 has been interpreted to afford broad power to Congress. *Smiley v. Holm*, 285 U.S. 355 (1931); *United States v. Manning*, 215 F. Supp. 272 (W.D. La. 1963). Courts have approved congressional action taken pursuant to Article I, Section 4 which have required states to significantly modify their federal voting procedures. In *Oregon v. Mitchell*, 400 U.S. 112 (1970), over objections by the State of Oregon, the Supreme Court upheld the constitutionality of 1970 amendments to the Voting Rights Act. The Court confirmed Congress' broad authority to make or alter laws regulating national elections, including its power over voter registration:

It cannot be doubted that these comprehensive words embrace authority to provide a complete code for congressional elections, not only as to times and places, but in relation to notices, registration, supervision of voting, protection of voters, prevention of fraud and corrupt practices, counting of votes, duties of inspectors and

canvassers, and making and publication of election returns; in short, to enact the numerous requirements as to procedure and safeguards which experience shows are necessary in order to enforce the fundamental right involved. *Id.* at 122 (quoting *Smiley v. Holm*, 285 U.S. 355, 366 (1931)).

The State of California and Governor Wilson contend that, while Congress is afforded power to regulate elections, the Tenth Amendment prohibits Congress from requiring a particular state agency, not otherwise designated by the state for registration, to administer a federal voter registration scheme. The Tenth Amendment reserves to the states those powers not delegated to the federal government. The State of California asserts that the NVRA violates the Tenth Amendment of the United States Constitution because it commandeers state agencies to administer a federal election program. The State of California relies on *New York v. United States*, 505 U.S. ___ 112 S.Ct. 2408 (1992) and related cases to support its position that Congress exceeded the scope of its enumerated constitutional powers by requiring a state to expend resources to carry out a congressional mandate.

In *New York*, the Supreme Court upheld portions of the Low Level Radioactive Waste Policy Act ("the Act") as a permissible exercise of congressional power to regulate disposal of radioactive waste under the Commerce Clause. Pertinent to the State of California's argument in this case, the Court struck down provisions of the Act requiring those states which failed to regulate according to the instructions of Congress to "take title" and accept ownership of and financial responsibility for the waste.

The Court observed that these "take title" requirements went beyond the authority of Congress to regulate interstate commerce. While Congress could *influence* state conduct by attaching conditions on the receipt of federal funds, it could not commandeer the legislative process of the state by directly compelling it to enact a federal regulatory program. "Whether one views the take title provision as lying outside Congress' enumerated powers, or as infringing upon the core of state sovereignty reserved by the Tenth Amendment, the provision is inconsistent with the federal structure of our Government established by the Constitution." *Id.* at 2429.

Although the principles outlining the constitutional boundaries between congressional power and state sovereignty discussed in *New York* are applicable to this case, *New York* is not controlling here because it involves a different constitutional provision. The *New York* decision discussed the limits of congressional power under the Commerce Clause. The *New York* Court held that Congress had the "authority to regulate private activity under the Commerce Clause", but that it did not have the power to require *states* to regulate its program. *Id.* at 2424.

In contrast, Article I, Section 4 specifically states that Congress may make or alter state regulations concerning the time, place and manner of federal elections. Consequently, Congress through the NVRA may directly regulate the state's manner and means of voter registration without invading an area reserved to the states. As the court noted in *United States v. Manning*, 215 F. Supp. 272 (1963):

[N]othing in the language or history of the Tenth Amendment gives the State the exclusive sovereignty over the election processes against the federal government's otherwise constitutional exercise of a power within the scope of Article I, Section 4 of the Constitution and the Fourteenth and Fifteenth Amendments. In Justice Holmes's phrase, this "is not a controversy between equals." It is necessary at this time to say again, and underscore it, that *within the area of delegated power, express or implied, the Tenth Amendment does not reduce the powers of the United States*. Instead, notwithstanding its origin, the Tenth Amendment reaffirms the reality of the nation as a nation. It reaffirms the sovereignty of the federal union when a conflict between a state and the United States puts the national interest at stake. *Id.* at 277.

In the Ninth Circuit, in order to obtain a preliminary injunction, the moving party must show a combination of probable success on the merits and the possibility of irreparable injury or that serious questions are raised and the balance of hardships tips sharply in its favor. *Atari Games Corp. v. Nintendo of America, Inc.*, 897 F.2d 1572, 1575 (Fed. Cir. 1990); *Vision Sports, Inc. v. Melville Corp.*, 888 F.2d 609, 612 (9th Cir. 1989). As set forth above, the Court finds that, with respect to the Constitutionality of the NVRA, the United States and the Voting Rights Coalition satisfy these requirements. Therefore, since the trial on the merits has been advanced under Rule 65(a)(2), it is appropriate to issue a permanent injunction.

B. Class Certification

The Voting Rights Coalition and other interested private parties move the Court to certify a class, pursuant to Rule 23 of the Federal Rules of Civil Procedure. The following class definition was proposed:

All United States citizens over the age of eighteen and resident in the State of California who are not registered to vote, who have moved since their last voter registration, who may desire to re-register to vote during the pendency of this action, who may be subject to removal of their voter registration or who may be denied the right to vote in violation of the NVRA.

Rule 23(a) provides that a class action may be brought only if: (1) the class is so numerous that joinder of all members is impracticable; (2) there are questions of law or fact common to the class; (3) the claims or defenses of the representative parties are typical of the claims or defenses of the class; and (4) the representative parties will fairly and adequately protect the interests of the class. The Court finds that these prerequisites have been met in this instance.

The Court further finds that it has been established that the State of California has acted or refused to act on grounds generally applicable to the class, thereby making final injunctive relief appropriate, in compliance with Rule 23(b)(2). Therefore, the Court GRANTS the motion for class certification. Accordingly, Plaintiffs Stella Domínguez, Cynthia Moreno and Veronica Moreno are hereby certified to represent a Plaintiff Class as defined above, in these consolidated actions. Notice is not required for absent class members.

IV. JUDGMENT

Based upon the foregoing, the Court DENIES the State of California's motion for entry of an injunction and GRANTS the Voting Rights Coalition's motion for entry of an injunction. The Court finds that the NVRA is constitutional and is binding on the State of California. The State of California and Governor Wilson are permanently enjoined from failing to comply with the provisions of the NVRA.

Within ten (10) days of this Order, the State of California and Governor Wilson shall file and serve a proposed plan for implementing the NVRA. The plan shall specify the dates by which the State of California shall be in full compliance with the provisions of the NVRA. The Court reserves the right to require status reports as to the manner and timing of implementation.

The Court bifurcates and reserves for separate determination the claims of the Voting Rights Coalition regarding past and future conduct by the State of California and Governor Wilson with respect to implementing the NVRA.

The Court DENIES the State of California and Governor Wilson's evidentiary objections to the declarations which have been submitted by the Voting Rights Coalition and other interested private parties and the United States. The Court finds that the declarations are not relevant to the determination of the constitutionality of the NVRA.

The Court also DENIES the State of California and Governor Wilson's request for a stay of this Order, pursuant to Rules 27 and 62(c) of the Federal Rules of Civil Procedure.

Based upon the oral motion of the United States, the Court DISMISSES without prejudice the FEC and FEC Chairman Trevor Potter.

IT IS SO ORDERED.

DATED: March 2, 1995

/s/ James Ware
JAMES WARE
United States District Judge

This is to certify that copies of this order have been mailed to:

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Dated: 3/2/95

CLERK OF COURT

By: Ronald L. Davis
Ronald L. Davis
Deputy Clerk

NATIONAL VOTER REGISTRATION ACT OF 1993
(PUBLIC LAW 103-31 - MAY 20, 1993)

Revised 2/10/95

An Act

To establish national voter registration procedures for Federal elections, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE.

This Act may be cited as the "National Voter Registration Act of 1993".

Sec. 2. FINDINGS AND PURPOSES.

(a) **FINDINGS.** - The Congress finds that -

- (1) the right of citizens of the United States to vote is a fundamental right;
- (2) it is the duty of the Federal, State, and local governments to promote the exercise of that right; and
- (3) discriminatory and unfair registration laws and procedures can have a direct and damaging effect on voter participation in elections for Federal office and disproportionately harm voter participation by various groups, including racial minorities.

(b) **PURPOSES.** - The purposes of this Act are -

- (1) to establish procedures that will increase the number of eligible citizens who register to vote in elections for Federal office;

- (2) to make it possible for Federal, State, and local governments to implement this Act in a manner that enhances the participation of eligible citizens as voters in elections for Federal office;
- (3) to protect the integrity of the electoral process; and
- (4) to ensure that accurate and current voter registration rolls are maintained.

SEC. 3. DEFINITIONS

As used in this Act -

- (1) the term "election" has the meaning stated in section 301(1) of the Federal Election Campaign Act of 1971 (2 U.S.C. 431(1));
- (2) the term "Federal office" has the meaning stated in section 301(3) of the Federal Election Campaign Act of 1971 (2 U.S.C. 431(3));
- (3) the term "motor vehicle driver's license" includes any personal identification document issued by a State motor vehicle authority;
- (4) the term "State" means a State of the United States and the District of Columbia; and
- (5) the term "voter registration agency" means an office designated under section 7(a)(1) to perform voter registration activities.

SEC. 4. NATIONAL PROCEDURES FOR VOTER REGISTRATION FOR ELECTIONS FOR FEDERAL OFFICE.

- (a) IN GENERAL. - Except as provided in subsection (b), notwithstanding any other Federal or State law, in addition to any other method of voter registration

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provide for under State law, each State shall establish procedures to register to vote in elections for Federal office –

- (1) by application made simultaneously with an application for a motor vehicle driver's license pursuant to section 5;
- (2) by mail application pursuant to section 6; and
- (3) by application in person –
 - (A) at the appropriate registration site designated with respect to the residence of the applicant in accordance with State law; and
 - (B) at a Federal, State, or nongovernmental office designated under section 7.

(b) **NONAPPLICABILITY TO CERTAIN STATES.** – This Act does not apply to a State described in either or both of the following paragraphs:

- (1) A State in which, under law that is in effect continuously on and after March 11, 1993, there is no voter registration requirement for any voter in the State with respect to an election for Federal office.
- (2) A State in which, under law that is in effect continuously on and after March 11, 1993, or that was enacted on or prior to March 11, 1993, and by its terms is to come into effect upon the enactment of this Act, so long as that law remains in effect, all voters in the State may register to vote at the polling place at the time of voting in a general election for Federal office.

SEC. 5. SIMULTANEOUS APPLICATION FOR VOTER REGISTRATION AND APPLICATION FOR MOTOR VEHICLE DRIVER'S LICENSE.

(a) IN GENERAL. -

- (1) Each State motor vehicle driver's license application (including any renewal application) submitted to the appropriate State motor vehicle authority under State law shall serve as an application for voter registration with respect to elections for Federal office unless the applicant fails to sign the voter registration application.
- (2) An application for voter registration submitted under paragraph (1) shall be considered as updating any previous voter registration by the applicant.

(b) LIMITATION ON USE OF INFORMATION. - No information relating to the failure of an applicant for a State motor vehicle driver's license to sign a voter registration application may be used for any purpose other than voter registration.

(c) FORMS AND PROCEDURES. -

- (1) Each State shall include a voter registration application form for elections for Federal office as part of an application for State motor vehicle driver's license.
- (2) The voter registration application portion of an application for a State motor vehicle driver's license -
 - (A) may not require any information that duplicates information required in the driver's license portion of the form (other than a second signature or other information necessary under subparagraph (C));

- (B) may require only the minimum amount of information necessary to –
 - (i) prevent duplicate voter registrations; and
 - (ii) enable State election officials to assess the eligibility of the applicant and to administer voter registration and other parts of the election process;
- (C) shall include a statement that –
 - (i) states each eligibility requirement (including citizenship);
 - (ii) contains an attestation that the applicant meets each such requirement; and
 - (iii) requires the signature of the applicant, under penalty of perjury;
- (D) shall include, in print that is identical to that used in the attestation portion of the application –
 - (i) the information required in section 8(a)(5) (A) and (B);
 - (ii) a statement that, if an applicant declines to register to vote, the fact that the applicant has declined to register will remain confidential and will be used only for voter registration purposes; and
 - (iii) a statement that if an applicant does register to vote, the office at which

the applicant submits a voter registration application will remain confidential and will be used only for voter registration purposes, and

- (E) shall be made available (as submitted by the applicant, or in machine readable or other format) to the appropriate State election official as provided by State law.
- (d) **CHANGE OF ADDRESS.** – Any change of address form submitted in accordance with State law for purposes of a State motor vehicle driver's license shall serve as notification of change of address for voter registration with respect to elections for Federal office for the registrant involved unless the registrant states on the form that the change of address is not for voter registration purposes.
- (e) **TRANSMITTAL DEADLINE.** –
 - (1) Subject to paragraph (2), a completed voter registration portion of an application for a State motor vehicle driver's license accepted at a State motor vehicle authority shall be transmitted to the appropriate State election office not later than 10 days after the date of acceptance.
 - (2) If a registration application is accepted within 5 days before the last day for registration to vote in an election, the application shall be transmitted to the appropriate State election official not later than 5 days after the date of acceptance.

SEC. 6. MAIL REGISTRATION.

(a) FORM. –

- (1) Each State shall accept and use the mail voter registration application form prescribed by the

Federal Election Commission pursuant to section 9(a)(2) for the registration of voters in elections for Federal office.

- (2) In addition to accepting and using the form described in paragraph (1), a State may develop and use a mail voter registration form that meets all of the criteria stated in section 9(b) for the registration of voters in elections for Federal office.
 - (3) A form described in paragraph (1) or (2) shall be accepted and used for notification of a registrant's change of address.
- (b) **AVAILABILITY OF FORMS.** – The chief State election official of a State shall make the forms described in subsection (a) available for distribution through governmental and private entities, with particular emphasis on making them available for organized voter registration programs.
- (c) **FIRST TIME VOTERS.** –
- (1) Subject to paragraph (2), a State may by law require a person to vote in person if –
 - (A) the person was registered to vote in a jurisdiction by mail; and
 - (B) the person has not previously voted in that jurisdiction.
 - (2) Paragraph (1) does not apply in the case of a person –
 - (A) who is entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act (42 U.S.C. 1973ff-1 et seq.);
 - (B) who is provided the right to vote otherwise than in person under section

3(b)(2)(B)(ii) of the Voting Accessibility for the Elderly and Handicapped Act (42 U.S.C. 1973ee-1(b)(2)(B)(ii)); or

- (C) who is entitled to vote otherwise than in person under any other Federal law.
- (d) UNDELIVERED NOTICES. – If a notice of the disposition of a mail voter registration application under section 8(a)(2) is sent by nonforwardable mail and is returned undelivered, the registrar may proceed in accordance with section 8(d).

SEC. 7. VOTER REGISTRATION AGENCIES.

(a) DESIGNATION. –

- (1) Each State shall designate agencies for the registration of voters in elections for Federal office.
- (2) Each State shall designate as voter registration agencies –
 - (A) all offices in the State that provide public assistance; and
 - (B) all offices in the State that provide State-funded programs primarily engaged in providing services to persons with disabilities.
- (3) (A) In addition to voter registration agencies designated under paragraph (2), each State shall designate other offices within the State as voter registration agencies.
- (B) Voter registration agencies designated under subparagraph (A) may include –
 - (i) State or local government offices such as public libraries, public schools, offices of city and county clerks (including marriage license bureaus), fishing and hunting license

bureaus, government revenue offices, unemployment compensation offices, and offices not described in paragraph (2)(B) that provide services to persons with disabilities; and

- (ii) Federal and nongovernmental offices, with the agreement of such offices.
- (4) (A) At each voter registration agency, the following services shall be made available:
- (i) Distribution of mail voter registration application forms in accordance with paragraph (6).
 - (ii) Assistance to applicants in completing voter registration application forms, unless the applicant refuses such assistance.
 - (iii) Acceptance of completed voter registration application forms for transmittal to the appropriate State election official.
- (B) If a voter registration agency designated under paragraph (2)(B) provides services to a person with a disability at the person's home, the agency shall provide the services described in subparagraph (A) at the person's home.
- (5) A person who provides service described in paragraph (4) shall not -
- (A) seek to influence an applicant's political preference or party registration;

- (B) display any such political preference or party allegiance;
 - (C) make any statement to an applicant or take any action the purpose or effect of which is to discourage the applicant from registering to vote; or
 - (D) make any statement to an applicant or take any action the purpose or effect of which is to lead the applicant to believe that a decision to register or not to register has any bearing on the availability of services or benefits.
- (6) A voter registration agency that is an office that provides service or assistance in addition to conducting voter registration shall -
- (A) distribute with each application for such service or assistance, and with each recertification, renewal, or change of address form relating to such service or assistance -
 - (i) the mail voter registration application form described in section 9(a)(2), including a statement that -
 - (I) specifies each eligibility requirement (including citizenship);
 - (II) contains an attestation that the applicant meets each such requirement; and
 - (III) requires the signature of the applicant, under penalty of perjury; or
 - (ii) the office's own form if it is equivalent to the form described in section

9(a)(2), unless the applicant, in writing, declines to register to vote;

(B) provide a form that includes -

- (i) the question, "If you are not registered to vote where you live now, would you like to apply to register to vote here today?";
- (ii) if the agency provides public assistance, the statement, "Applying to register or declining to register to vote will not affect the amount of assistance that you will be provided by this agency.";
- (iii) boxes for the applicant to check to indicate whether the applicant would like to register or declines to register to vote (failure to check either box being deemed to constitute a declination to register for purposes of subparagraph (C)), together with the statement (in close proximity to the boxes and in prominent type), "IF YOU DO NOT CHECK EITHER BOX, YOU WILL BE CONSIDERED TO HAVE DECIDED NOT TO REGISTER TO VOTE AT THIS TIME.";
- (iv) the statement, "If you would like help in filling out the voter registration application form, we will help you. The decision whether to seek or accept help is yours. You may fill out the application in private."; and
- (v) the statement, "If you believe that someone has interfered with your

right to register or to decline to register to vote, your right to privacy in deciding whether to register or in applying to register to vote, or your right to choose your own political party or other political preference, you may file a complaint with _____, the blank being filled by the name, address, and telephone number of the appropriate official to whom such a complaint should be addressed; and

- (C) provide to each applicant who does not decline to register to vote the same degree of assistance with regard to the completion of the registration application form as is provided by the office with regard to the completion of its own forms, unless the applicant refuses such assistance.
- (7) No information relating to a declination to register to vote in connection with an application made at an office described in paragraph (6) may be used for any purpose other than voter registration.
- (b) **FEDERAL GOVERNMENT AND PRIVATE SECTOR COOPERATION.** - All departments, agencies, and other entities of the executive branch of the Federal Government shall, to the greatest extent practicable, cooperate with the States in carrying out subsection (a), and all nongovernmental entities are encouraged to do so.
- (c) **ARMED FORCES RECRUITMENT OFFICES.** -
 - (1) Each State and the Secretary of Defense shall jointly develop and implement procedures for

persons to apply to register to vote at recruitment offices of the Armed Forces of the United States.

- (2) A recruitment office of the Armed Forces of the United States shall be considered to be a voter registration agency designated under subsection (a)(2) for all purposes of this Act.

(d) TRANSMITTAL DEADLINE. -

- (1) subject to paragraph (2), a completed registration application accepted at a voter registration agency shall be transmitted to the appropriate State election official not later than 10 days after the date of acceptance.
- (2) If a registration application is accepted within 5 days before the last day for registration to vote in an elections, the application shall be transmitted to the appropriate State election official not later than 5 days after the date of acceptance.

SEC. 8. REQUIREMENTS WITH RESPECT TO ADMINISTRATION OF VOTER REGISTRATION

- (a) IN GENERAL. - In the administration of voter registration for elections for Federal office, each State shall -

- (1) ensure that any eligible applicant is registered to vote in an election -

- (A) in the case of registration with a motor vehicle application under section 5, if the valid voter registration form of the applicant is submitted to the appropriate State motor vehicle authority not later than the lesser of 30 days, or the period provided

by State law, before the date of the election;

- (B) in the case of registration by mail under section 6, if the valid voter registration form of the applicant is postmarked not later than the lesser of 30 days, or the period provided by State law, before the date of the election;
 - (C) in the case of registration at a voter registration agency, if the valid voter registration form of the applicant is accepted at the voter registration agency not later than the lesser of 30 days, or the period provided by the State law, before the date of the election; and
 - (D) in any other case, if the valid voter registration form of the applicant is received by the appropriate State election official not later than the lesser of 30 days, or the period provided by State law, before the date of the election;
- (2) require that appropriate State election official to send notice to each applicant of the disposition of the application;
 - (3) provide that the name of a registrant may not be removed from the official list of eligible voters except -
 - (A) at the request of the registrant,
 - (B) as provided by State law, by reason of criminal conviction or mental incapacity;
or
 - (C) as provided under paragraph (4);

- (4) conduct a general program that makes a reasonable effort to remove the names of ineligible voters from the official lists of eligible voters by reason of –
 - (A) the death of a registrant; or
 - (B) a change in the residence of the registrant, in accordance with subsections (b), (c), and (d);
 - (5) inform applicants under sections 5, 6, and 7 of –
 - (A) voter eligibility requirements; and
 - (B) penalties provided by law for submission of a false voter registration application; and
 - (6) ensure that the identity of the voter registration agency through which any particular voter is registered is not disclosed to the public.
- (b) **CONFIRMATION OF VOTER REGISTRATION.** – Any State program or activity to protect the integrity of the electoral process by ensuring the maintenance of an accurate and current voter registration roll for elections for Federal office –
- (1) shall be uniform, nondiscriminatory, and in compliance with the Voting Rights Act of 1965 (42 U.S.C. 1973 et seq.); and
 - (2) shall not result in the removal of the name of any person from the official list of voters registered to vote in an election for Federal office by reason of the person's failure to vote.
- (c) **VOTER REMOVAL PROGRAMS.** –
- (1) A State may meet the requirement of subsection (a)(4) by establishing a program under which –

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- (A) change-of-address information supplied by the Postal Service through its licensees is used to identify registrants whose addresses may have changed; and
 - (B) if it appears from information provided by the Postal Service that –
 - (i) a registrant has moved to a different residence address in the same registrar's jurisdiction in which the registrant is currently registered, the registrar changes the registration records to show the new address and sends the registrant a notice of the change by forwardable mail and a postage prepaid preaddressed return form by which the registrant may verify or correct the address information; or
 - (ii) the registrant has moved to a different residence address not in the same registrar's jurisdiction, the registrar uses the notice procedure described in subsection (d)(2) to confirm the change of address.
- (2) (A) A State shall complete, not later than 90 days prior to the date of a primary or general election for Federal office, any program the purpose of which is to systematically remove the name of ineligible voters from the official lists of eligible voters.
- (B) Subparagraph (A) shall not be construed to preclude –
- (i) the removal of names from official lists of voters on a basis described in

paragraph (3) (A) or (B) or (4)(A) of subsection (a); or

- (ii) correction of registration records pursuant to this Act.

(d) REMOVAL OF NAMES FROM VOTING ROLLS. -

- (1) A State shall not remove the name of a registrant from the official list of eligible voters in elections for Federal office on the ground that the registrant has changed residence unless the registrant -

- (A) confirms in writing that the registrant has changed residence to a place outside the registrar's jurisdiction in which the registrant is registered; or

- (B) (i) has failed to respond to a notice described in paragraph (2); and

- (ii) has not voted or appeared to vote (and, if necessary, correct the registrar's record of the registrant's address) in an election during the period beginning on the date of the notice and ending on the day after the date of the second general election for Federal office that occurs after the date of the notice.

- (2) A notice is described in this paragraph if it is a postage prepaid and pre-addressed return card, sent by forwardable mail, on which the registrant may state his or her current address, together with a notice to the following effect:

- (A) If the registrant did not change his or her residence, or changed residence but remained in the registrar's jurisdiction, the

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registrant should return the card not later than the time provided for mail registration under subsection (a)(1)(B). If the card is not returned, affirmation or confirmation of the registrant's address may be required before the registrant is permitted to vote in a Federal election during the period beginning on the date of the notice and ending on the day after the date of the notice, and if the registrant does not vote in an election during that period the registrant's name will be removed from the list of eligible voters.

(B) If the registrant has changed residence to a place outside the registrar's jurisdiction in which the registrant is registered, information concerning how the registrant can continue to be eligible to vote.

(3) A voting registrar shall correct an official list of eligible voters in elections for Federal office in accordance with change of residence information obtained in conformance with this subsection.

(e) PROCEDURE FOR VOTING FOLLOWING FAILURE TO RETURN CARD. -

(1) A registrant who has moved from an address in the area covered by a polling place to an address in the same area shall, notwithstanding failure to notify the registrar of the change of address prior to the date of an election, be permitted to vote at that polling place upon oral or written affirmation by the registrant of the change of address before an election official at that polling place.

- (2) (A) A registrant who has moved from an address in the area covered by one polling place to an address in an area covered by a second polling place within the same registrar's jurisdiction and the same congressional district and who has failed to notify the registrar of the change of address prior to the date of an election, at the option of the registrant -
- (i) shall be permitted to correct the voting records and vote at the registrant's former polling place, upon oral or written affirmation by the registrant of the new address before an election official at that polling place; or
 - (ii) (I) shall be permitted to correct the voting records and vote at a central location within the same registrar's jurisdiction designated by the registrar where a list of eligible voters is maintained, upon written affirmation by the registrant of the new address on a standard form provided by the registrar at the central location; or
 - (II) shall be permitted to correct the voting records for purposes of voting in future elections at the appropriate polling place for the current address and, if permitted by State law, shall be permitted to vote in the present election,

upon confirmation by the registrant of the new address by such means as are required by law.

- (B) If State law permits the registrant to vote in the current election upon oral or written affirmation by the registrant of the new address at a polling place described in subparagraph (A)(i) or (A)(ii)(II), voting at the other locations described in subparagraph (A) need not be provided as options.
- (3) If the registration records indicate that a registrant has moved from an address in the area covered by a polling place, the registrant shall, upon oral or written affirmation by the registrant before an election official at that polling place that the registrant continues to reside at the address previously made known to the registrar, be permitted to vote at that polling place.
- (f) **CHANGE OF VOTING ADDRESS WITHIN A JURISDICTION.** – In the case of a change of address, for voting purposes, of a registrant to another address within the same registrar's jurisdiction, the registrar shall correct the voting registration list accordingly, and the registrant's name may not be removed from the official list of eligible voters by reason of such a change of address except as provided in subsection (d).
- (g) **CONVICTION IN FEDERAL COURT.** –
 - (1) On the conviction of a person of a felony in a district court of the United States, the United States attorney shall give written notice of the

conviction to the chief State election official designated under section 10 of the State of the person's residence.

- (2) A notice given pursuant to paragraph (1) shall include –
 - (A) the name of the offender;
 - (B) the offender's age and residence address;
 - (C) the date of entry of the judgment;
 - (D) a description of the offenses of which the offender was convicted; and
 - (E) the sentence imposed by the court.
- (3) On the request of the chief State election official of the State or other State official with responsibility for determining the effect that a conviction may have on an offender's qualification to vote, the United States attorney shall provide such additional information as the United States attorney may have concerning the offender and the offense of which the offender was convicted.
- (4) If a conviction of which notice was given pursuant to paragraph (1) is overturned, the United States attorney shall give the official to whom the notice was given written notice of the vacation of the judgment.
- (5) The chief State election official shall notify the voter registration officials of the local jurisdiction in which an offender resides of the information received under this subsection.

(h) REDUCED POSTAL RATES. -

- (1) Subchapter II of chapter 36 of title 39, United States Code, is amended by adding at the end the following:

"§ 3629. Reduced rates for voter registration purposes

"The Postal Service shall make available to a State or local voting registration official the rate for any class of mail that is available to a qualified nonprofit organization under section 3626 for the purpose of making a mailing that the official certifies is required or authorized by the National Voter Registration Act of 1993."

- (2) The first sentence of section 2401(c) of title 39, United States Code, is amended by striking out "and 3626(a)-(h) and (j)-(k) of this title," and inserting in lieu thereof "3636(a)-(h), 3626(j)-(k), and 3629 of this title".
- (3) Section 3627 of title 39, United States Code, is amended by striking out "or 3626 of this title," and inserting in lieu thereof "3626, or 3629 of this title".
- (4) The table of sections for chapter 36 of title 39, United States Code, is amended by inserting after the item relating to section 3628 the following item:

"3629. Reduced rates for voter registration purposes."

(i) PUBLIC DISCLOSURE OF VOTER REGISTRATION ACTIVITIES. -

- (1) Each State shall maintain for at least 2 years and shall make available for public inspection and, where available, photocopying at a reasonable

cost, all records concerning the implementation of programs and activities conducted for the purpose of ensuring the accuracy and currency of official lists of eligible voters, except to the extent that such records relate to a declination to register to vote or to the identity of a voter registration agency through which any particular voter is registered.

- (2) The records maintained pursuant to paragraph (1) shall include lists of the names and addresses of all persons to whom notices described in subsection (d)(2) are sent, and information concerning whether or not each such person has responded to the notice as of the date that inspection of the records is made.
- (j) **DEFINITION.** – For the purposes of this section, the term “registrar’s jurisdiction” means –
- (1) an incorporated city, town, borough, or other form of municipality;
 - (2) if voter registration is maintained by a county, parish, or other unit of government that governs a larger geographic area than a municipality, the geographic area governed by that unit of government; or
 - (3) if voter registration is maintained on a consolidated basis for more than one municipality or other unit of government by an office that performs all of the functions of a voting registrar, the geographic area of the consolidated municipalities or other geographic units.

SEC. 9. FEDERAL COORDINATION AND REGULATIONS.

(a) IN GENERAL. – The Federal Election Commission –

- (1)** in consultation with the chief election officers of the States, shall prescribe such regulations as are necessary to carry out paragraphs (2) and (3);
- (2)** in consultation with the chief election officers of the States, shall develop a mail voter registration application form for elections for Federal office;
- (3)** not later than June 30 of each odd-numbered year, shall submit to the Congress a report assessing the impact of this Act on the administration of elections for Federal office during the preceding 2-year period and including recommendations for improvements in Federal and State procedures, forms, and other matters affected by this Act; and
- (4)** shall provide information to the States with respect to the responsibilities of the State under this Act.

(b) CONTENTS OF MAIL VOTER REGISTRATION FORM. – The mail voter registration form developed under subsection (a)(2) –

- (1)** may require only such identifying information (including the signature of the applicant) and other information (including data relating to previous registration by the applicant), as is necessary to enable the appropriate State election official to assess the eligibility of the applicant and to administer voter registration and other parts of the election process;

- (2) shall include a statement that –
 - (A) specifies each eligibility requirement (including citizenship);
 - (B) contains attestation that the applicant meets each such requirement; and
 - (C) requires the signature of the applicant, under penalty of perjury;
- (3) may not include any requirement for notarization or other formal authentication; and
- (4) shall include, in print that is identical to that used in the attestation portion of the application –
 - (i) the information required in section 8(a)(5) (A) and (B);
 - (ii) a statement that, if an applicant declines to register to vote, the fact that the applicant has declined to register will remain confidential and will be used only for voter registration purposes; and
 - (iii) a statement that if an applicant does register to vote, the office at which the applicant submits a voter registration application will remain confidential and will be used only for voter registration purposes.

SEC. 10. DESIGNATION OF CHIEF STATE ELECTION OFFICIAL.

Each State shall designate a State officer or employee as the chief State election official to be responsible for coordination of State responsibilities under this Act.

SEC. 11. CIVIL ENFORCEMENT AND PRIVATE RIGHT OF ACTION.

- (a) **ATTORNEY GENERAL.** – The Attorney General may bring a civil action in an appropriate district court for such declaratory or injunctive relief as is necessary to carry out this Act.
- (b) **PRIVATE RIGHT OF ACTION.** –
 - (1) A person who is aggrieved by a violation of this Act may provide written notice of the violation to the chief election official of the State involved.
 - (2) If the violation is not corrected within 90 days after receipt of a notice under paragraph (1), or within 20 days after receipt of the notice if the violation occurred within 120 days before the date of an election for Federal office, the aggrieved person may bring a civil action in an appropriate district court for declaratory or injunctive relief with respect to the violation.
 - (3) If the violation occurred within 30 days before the date of an election for Federal office, the aggrieved person need not provide notice to the chief election official of the State under paragraph (1) before bringing a civil action under paragraph (2).
- (c) **ATTORNEY'S FEES.** – In a civil action under this section, the court may allow the prevailing party (other than the United States) reasonable attorney fees, including litigation expenses, and costs.
- (d) **RELATION TO OTHER LAWS.** –
 - (1) The rights and remedies established by this section are in addition to all other rights and remedies provided by law, and neither the

rights and remedies established by this section nor any other provision of this Act shall supersede, restrict, or limit the application of the Voting Right Act of 1965 (42 U.S.C. 1973 et seq.).

- (2) Nothing in this Act authorizes or requires conduct that is prohibited by the Voting Rights Act of 1965 (42 U.S.C. 1973 et seq.).

SEC. 12. CRIMINAL PENALTIES.

A person, including an election official, who in any election for Federal office -

- (1) knowingly and willfully intimidates, threatens, or coerces, or attempts to intimidate, threaten, or coerce, any person for -
 - (A) registering to vote, or voting, or attempting to register to vote;
 - (B) urging or aiding any person to register to vote, to vote, or to attempt to register to vote; or
 - (C) exercising any right under this Act; or
- (2) knowingly and willfully deprives, defrauds, or attempts to deprive or defraud the residents of a State of a fair and impartially conducted election process, by -
 - (A) the procurement or submission of voter registration applications that are known by the person to be materially false, fictitious, or fraudulent under the laws of the State in which the election is held; or
 - (B) the procurement, casting, or tabulation of ballots that are known by the person to be materially false, fictitious, or fraudulent

under the laws of the State in which the election is held,

shall be fined in accordance with title 18, United States Code (which fines shall be paid into the general fund of the Treasury, miscellaneous receipts (pursuant to section 3302 of title 31, United States Code), notwithstanding any other law), or imprisoned not more than 5 years or both.

SEC. 13. EFFECTIVE DATE.

This Act shall take effect -

- (1) with respect to a State that on the date of enactment of this Act has a provision in the constitution of the State that would preclude compliance with this Act unless the State maintained separate Federal and State official lists of eligible voters, on the later of -
 - (A) January 1, 1996; or
 - (B) the date that is 120 days after the date by which, under the constitution of the State as in effect on the date of enactment of this Act, it would be legally possible to adopt and place into effect any amendments to the constitution of the State that are necessary to permit such compliance with this Act without requiring a special election; and
- (2) with respect to any State not described in paragraph (1), on January 1, 1995.

Approved May 20, 1993.

AMENDMENT XIV

**Citizenship, Representation, and Payment
of Public Debt**

Citizenship

SECTION 1. All persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States and of the state wherein they reside. No state shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any state deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Apportionment of Representatives

SECTION 2. Representatives shall be apportioned among the several states according to their respective numbers, counting the whole number of persons in each state, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice President of the United States, Representatives in Congress, the executive and judicial officers of a state, or the members of the legislature thereof, is denied to any of the male inhabitants of such state, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such state.

Disqualification for Public Office

SECTION 3. No person shall be a Senator or Representative in Congress, or elector of President and Vice President, or hold any office, civil or military, under the United States, or under any state, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any state legislature, or as an executive or judicial officer of any state, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each house, remove such disability.

Public Debt, Guarantee of

SECTION 4. The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any state shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

Power of Congress

SECTION 5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

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Proposed June 13, 1866; ratified July 9, 1868; certified
July 28, 1868.

AMENDMENT XV

Elective Franchise

Right of Citizens to Vote

SECTION 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any state on account of race, color, or previous condition of servitude.

Power of Congress

SECTION 2. The Congress shall have power to enforce this article by appropriate legislation.

Proposed February 26, 1869; ratified February 3, 1870; certified March 30, 1870.
